

\*\*\*\*\*ADDENDUM TO FAR PART 52.212-2\*\*\*\*\*

### **EVALUATION - COMMERCIAL ITEMS (Nov 2021)**

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

1. Price
2. Technical
3. Past Performance (see addendum below)

(b) Options. Paragraph is deleted.

(c) A written notice of award or acceptance of an offer furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

\*\*\*\*\*ADDENDUM TO FAR PART 52.212-2\*\*\*\*\*

**Basis for Contract Award:** The basis of which this contract will be awarded will be price and past performance in accordance with Revolutionary FAR Overhaul (RFO) Parts 12 and 15.103-1 in which competing offerors' past performance information will be evaluated on a basis significantly more important than price. By submission of its offer, the offeror accedes to all solicitation requirements, including terms and conditions, representations and certifications. The government reserves the right to make an award based on whether the lowest priced of the offerors having the highest past performance rating possible represents the best value when compared to any lower priced offerors. The evaluation process will include the following:

**A. Price Evaluation:** An offeror's proposed prices will be determined by multiplying the offeror's unit price by the annual quantity identified in the Price Exhibit (Attachment 1), limited to two decimal places for each Ordering Period. The sum total of all Firm-Fixed-Price Ordering Periods will form the offeror's Total Evaluated Price (TEP). Initially, government will rank all offers by the TEP lowest to highest according to price. The price evaluation will document the fairness and reasonableness of the TEP. The government reserves the right to perform price realism analysis.

NOTE: The contract will include RFO Clause 52.217-8, Option to Extend Services, with the potential to extend the contract an additional six (6) months beyond the awarded contract performance period. In the event the Government requires continued performance, the Government's evaluation of prices proposed for the base and all ordering periods will suffice to

be the Government's evaluation of prices under the extension of services (ref. 52.217-8). Should an extension of services be required, rates will be adjusted only as a result of revisions to applicable prevailing Department of Labor wage rates. Evaluating the Ordering Period CLINs or the six-month Extension of Services Option does not obligate the government to exercise the options.

**B. Past Performance Evaluation.** The government will evaluate recent and relevant performance information on the lowest priced evaluated offeror based on:

- (1) Any past performance information obtained from the Performance Questionnaires (Attachment 8); and
- (2) Any data independently obtained by the government and/or commercial sources.

**(1) Evaluation Process.** The past performance evaluation considers each offeror's demonstrated recent and relevant record of performance. In conducting the Past Performance evaluation, the Government reserves the right to use both the information provided in the offeror's Past Performance proposal volume, PPQs, and information obtained from other sources available to the Government.

**(2) The past performance evaluation** will take into account past performance information from the principle offeror, as well as the predecessor company's key personnel and subcontractors that will perform major aspects of the requirement. The past performance on the predecessor company's key personnel and subcontractors that will perform major aspects of the requirement will be rated as highly as past performance information for the principal offeror. The Government will use the following procedures in evaluating past performance:

a) The offeror's past performance efforts will be assessed for: Recency, Relevancy and Performance Quality. The Government will only evaluate performance quality on past efforts that are determined to be both recent and relevant, which are defined as follows:

(i) **Recency:** An assessment of the past performance information will be made to determine if it is recent. Recent past performance information includes contracts performed and/or being performed for any customer within the last three (3) years preceding the date of issuance of this solicitation, to include at least six (6) months of documented performance during the three (3) year period.

(ii) **Relevancy:** Relevant contracts performance effort involved similar scope, magnitude of effort, and complexities to that required by this solicitation. The government will assess relevancy for each contract and assign a rating as described in Table 1 below.

| TABLE 1 – RELEVANCY ASSESSMENT |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|--------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Rating                         | Definition                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Very Relevant                  | <b>To be considered very relevant, present/past performance contract efforts must include 39-51 exhaust hoods cleaned per year, and must involve essentially the same scope and magnitude of effort and complexities this solicitation requires.</b> Performance of effort shall include the following: Kitchen Exhaust Hood Certification and Cleaning Services, to include cleaning (to the bare metal) and certification of hood and duct systems. Cleaning procedures must adhere to the requirements of the National Fire Protection Association (NFPA) 96 cleaning and certification. |
| Relevant                       | <b>To be considered relevant, present/past performance contract efforts must include 20-38 exhaust hoods cleaned per year, and must involve similar scope and magnitude of effort and complexities this solicitation requires.</b> Performance of effort shall include the following: Kitchen Exhaust Hood Certification and Cleaning Services, to include cleaning (to the bare metal) and certification of hood and duct systems. Cleaning procedures must adhere to the requirements of the National Fire Protection Association (NFPA) 96 cleaning and certification.                   |
| Somewhat Relevant              | <b>To be considered somewhat relevant, present/past performance effort must include 10-19 exhaust hoods cleaned per year, and must involve some of the scope and magnitude of effort and complexities this solicitation requires.</b> Performance of effort shall include the following: Kitchen Exhaust Hood Certification and Cleaning Services, to include cleaning (to the bare metal) and certification of hood and duct systems. Cleaning procedures must adhere to the requirements of the National Fire Protection Association (NFPA) 96 cleaning and certification.                |
| Not Relevant                   | To be considered not relevant, present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires, and does not include Kitchen Exhaust Hood Certification and Cleaning Services, i.e. cleaning (to the bare metal) and certification hood and duct systems. Cleaning procedures must adhere to the requirements of the National Fire Protection Association (NFPA) 96.                                                                                                                                               |

**(3) Performance Quality:** The quality assessment consists of an evaluation of recent and relevant past performance information available, regardless of its source. The quality assessment may reveal positive or adverse past performance information. Adverse past performance is defined as past performance information that supports a less than satisfactory rating on any evaluation element or any unfavorable comment received from sources without a formal rating system.

Multiple ratings of less than "Satisfactory" in Contractor Performance Assessment Reporting System (CPARS) and/or Past Performance Questionnaires (PPQs) may result in a performance quality assessment rating of "No Confidence." Offerors may be given an opportunity to respond to adverse past performance information for which they have not previously had an opportunity to address in accordance with RFO 15.202. For each of the recent and relevant past performance

information reviewed, the performance quality of work will be assessed based on the one (1) Quality Assessment Criteria evaluated under Section four (4) of the PPQ (Attachment 8) and two (2) the evaluation ratings in the Federal Past Performance Information Retrieval System (PPIRS), if available and (3) Past Performance information obtained from other sources available to the Government.

(4) The purpose of the past performance evaluation is to assess the degree of confidence the Government has in the offeror's ability to meet the solicitation requirements based on the offeror's demonstrated record of performance. The assessment process will result in an offeror's overall performance confidence assessment rating of **Substantial Confidence, Satisfactory Confidence, Limited Confidence, No Confidence, or Neutral Confidence**. Offerors with no recent past or present performance history or the offeror's performance record is so limited that no confidence assessment rating can be reasonably assigned will receive the rating "Neutral Confidence," meaning the offeror is treated neither favorably nor unfavorably (neutral). As a result of the relevancy and performance quality assessments, offerors will receive an integrated past performance confidence assessment rating as described in Table 2 below:

| TABLE 2. Past Performance Confidence Assessment Ratings |                                                                                                                                                                                                                                                                       |
|---------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Rating                                                  | Description                                                                                                                                                                                                                                                           |
| SUBSTANTIAL CONFIDENCE                                  | Based on the offeror's quality/recent/relevant performance record, the government has a <b>high expectation</b> that the offeror will successfully perform the required effort.                                                                                       |
| SATISFACTORY CONFIDENCE                                 | Based on the offeror's quality/recent/relevant performance record, the government has a <b>reasonable expectation</b> that the offeror will successfully perform the required effort.                                                                                 |
| NEUTRAL CONFIDENCE                                      | No recent/relevant performance is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance. |
| LIMITED CONFIDENCE                                      | Based on the offeror's quality/recent/relevant performance record, the government has a <b>low expectation</b> that the offeror will successfully perform the required effort.                                                                                        |
| NO CONFIDENCE                                           | Based on the offeror's quality/recent/relevant performance record, the government has <b>no expectation</b> that the offeror will successfully perform the required effort.                                                                                           |

\*\*\*\***Note:** In evaluating past performance, the government reserves the right to give greater consideration to information on those contracts deemed most relevant to the effort described in this solicitation.\*\*\*\*

C. If the lowest priced evaluated offer is judged to have a "Substantial Confidence" performance rating that offer represents the best value for the Government and the evaluation process stops at this point.

Award shall be made to that offeror without further consideration of any other offers.

D. If the lowest priced offeror is not judged to have a "Substantial Confidence" performance rating, the next lowest priced offeror will be evaluated and the process will continue (in order by price) until an offeror is judged to have a "Substantial Confidence" performance rating or until all offerors are evaluated. The government reserves the right to award a contract to other than the lowest price offer if the difference in the Past Performance Confidence Rating of another offeror justifies the higher price premium. In that event, the Source Selection Authority will make an integrated assessment best value award decision using the TEP and the Past Performance Confidence Rating.

E. Offerors are cautioned to submit sufficient information and in the format specified in the proposal preparation instructions (as referenced in Attachment 5 Addendum to 52.212-1 Instructions to Offerors) to permit a meaningful assessment of past performance. Offerors may be asked to clarify certain aspects of their proposal or respond to adverse past performance information to which the offeror has not previously had an opportunity to respond. Exchanges conducted with regard to adverse past performance or to resolve minor or clerical errors will not constitute discussions, and the contracting officer reserves the right to award a contract without the opportunity for proposal revision.

F. The Government intends to award a contract without discussions with respective offerors. However, the Government reserves the right to conduct discussions if deemed in its best interest.

\*\*\*\*\* (End of Addendum to RFO PART 52.212-2) \*\*\*\*\*